IN THE NATIONAL COMPANY LAW TRIBUNAL,
SINGLE BENCH, CHENNAI

CA/148/CAA/2019

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of Scheme of Arrangement

Between

M/s. Net Resources Investments Private Limited
(Demerged Company)

And

M/s. ISAAC Enterprises Private Limited
(Resulting Company)

And

Their Respective Shareholders

Order delivered on 22nd February, 2019

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CH. MOHD SHARIEF TARIQ, MEMBER (JUDICIAL)

For Applicant(s):Mr. P. Sriram, PCS

ORDER

Per: CH. MOHD SHARIEF TARIQ, MEMBER (JUDICIAL)

1. Under consideration are Joint Company Application No. 148/CAA/ 2019 filed under Sections 230 to 232 of the Companies Act, 2013. The prayer made is to dispense with convening, holding and conducting of the meeting of Equity Shareholders,

Secured and Unsecured Creditors in relation to the Demerged Company. It is also prayed to dispense with convening, holding and conducting of the meeting of Equity Shareholders and Unsecured Creditors in relation to the Resulting Company.

2. **M/s. Net Resources Investments Private Limited**

i. The Demerged Company viz., M/s. Net Resources Investments Private Limited has 2 (Two) Equity Shareholders. The list of Equity Shareholders is placed at page 109-110 of the typed set filed with the Application. The consent affidavits given by all the Equity Shareholders are placed at pages 111-116 of the typed set filed with the Application, wherein it has been deposed that they do support the Scheme and consent to dispense with convening, holding and conducting the meeting of Equity Shareholders. Therefore, the meeting of the Equity Shareholders of the Demerged Company is allowed to be dispensed with.

ii. There are 2 (Two) Secured Creditors in relation to the Demerged Company. The certificate issued by the Chartered Accountants to this effect is placed at page 117 of the typed set filed with the Application. The Demerged Company has obtained the consent from 1 Secured Creditor viz., The Federal Bank Limited, amounting to 99% of the total value. The consent affidavit given by the Secured Creditor is placed at pages 118-120 of the typed set filed with the Application.

Therefore, the meeting of the Secured Creditors is allowed to be dispensed with under Clause (9) of the Section 230 of the Companies Act, 2013.

iii. There is only 1 (One) Unsecured Creditor in relation to the Demerged Company. The certificate issued by the Chartered Accountants to this effect is placed at page 121 of the typed set filed with the Application. The consent affidavit given by the Unsecured Creditor is placed at pages 122-123 of the typed set filed with the Application.

Therefore, the meeting of the Unsecured Creditor is allowed to be dispensed with under clause (9) of the Section 230 of the Companies Act, 2013.

iv. There are no Unsecured Trade Creditors in relation to the Demerged Company. The Certificate issued by the Chartered Accountants to this effect is placed at pages 124 of the typed set filed with the Application.

3. **M/s. ISAAC Enterprises Private Limited**

i. The Resulting Company viz., M/s. ISAAC Enterprises Private Limited has 2 (Two) Equity Shareholders. The list of Equity Shareholders is placed at page 100-101 of the typed set filed with the Application. The consent affidavits given by all the Equity Shareholders are placed at pages 102-105 of the typed set filed with the Application, wherein it has been deposed that they do support the Scheme and consent to dispense with convening, holding and conducting the meeting of Equity Shareholders. Therefore, the meeting of the Equity Shareholders of

the Resulting Company is allowed to be dispensed with.

ii. There are no Secured Creditors in relation to the Resulting Company. The certificate issued by the Chartered Accountants to this effect is placed at page 106 of the typed set filed with the Application.

iii. There is only 1 (One) Unsecured Creditor in relation to the Resulting Company. The certificate issued by the Chartered Accountants to this effect is placed at page 107 of the typed set filed with the Application. The consent affidavit given by the Unsecured Creditor is placed at pages 108-110 of the typed set filed with the Application.

Therefore, the meeting of the Unsecured Creditor is allowed to be dispensed with under clause (9) of the Section 230 of the Companies Act, 2013.

iv. There are no Unsecured Trade Creditors in relation to the Resulting Company. The certificate issued by the Chartered Accountants to this effect is placed at pages 111 of the typed set filed with the Application.

4. The Registry is directed to issue notice to the concerned Regional Director, Ministry of Corporate Affairs, RoC and Income Tax Authorities including the Assessing Officers of the I.T. Circle, in relation to the Applicant Companies separately. Since the Applicant Companies are Private Limited, there is no requirement to issue notice to SEBI or other Stock Exchanges and CCI or other sectoral regulators. In case, the statutory authorities to whom the notice is directed to be issued are desirous of making any objection/representation, they may do so within 30 days from the date of receipt of the notice. In case no objection/representation is made, it shall be presumed that they/any of them have/has no objection/representation to make.

5. The Applicant Companies are directed to issue private notice, have not less than 30+2 days before filing the petitions, to the concerned authorities/regulators by way of speed post/hand delivery separately. The proof of sending and effecting the service of notice upon them along with the

newspaper publication shall be submitted with the supporting affidavit to this Bench along with Company Petition(s).

6. The Applicant Companies are directed to effect publication in the newspapers one in English Daily (Indian Express - Tamilnadu Edition) and another in Vernacular Daily (Dinamani- Tamilnadu Edition) provided the said newspapers have wide circulation in the State of Tamilnadu, having not less than 30+2 days before filing the Company Petition(s). The Applicant Companies are directed to upload the notice on their websites and display the notice on the notice board at the Registered Office of the Applicant Company. The Registry is also directed to display the notice on the notice board of this Bench.

7. Accordingly, the Application is **allowed**. The Applicant Companies are directed to present the Petition(s) on or before **08.04.2019**.

[CH. MOHD. SHARIEF TARIQ]
MEMBER (JUDICIAL)

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